

24NWLC18754 24NWLC18754

County: los-angeles

Division: Civil Law and Motion

Department: Y

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Case Number: 24NWLC18754 Hearing Date: September 22, 2026 Dept: Y

24NWLC18754: LVNV FUNDING LLC vs ERICA C JENKINS, AN INDIVIDUAL

Tentative Ruling:

On August 13, 2026, Plaintiff LVNV Funding LLC's ("Plaintiff") filed a second Application for Ex Parte Order for Entry of Judgment ("Ex Parte Application") against Defendant Erika Jenkins. Plaintiff filed its initial Ex Parte Application on October 16, 2025 seeking the same relief. The Court denied Plaintiff's initial Ex Parte Application on November 7, 2025 stating as follows: "Request to set aside notice of conditional settlement filed on 10/16/2025 is DENIED as declaration states breach occurred approximately 4 years prior to Plaintiff filing the complaint. OSC remains on calendar, Plaintiff may provide further information in support of request."

The Court has read and considered Plaintiff's second Ex Parte Application, including the declaration of counsel in support of entry of judgment pursuant to stipulation. The Court has also read and reviewed the attached Settlement Agreement and Stipulation for Entry of Judgment Upon Default ("Stipulation"). The Court notes that the Stipulation is undated and the signatures appear to be computer-generated and not handwritten signatures, which is of concern to the Court. The Court also notes that the address used for Defendant in the letter enclosing the Stipulation includes Defendant's apartment number while the Proof of Service for this Ex Parte Application and the letter sent to Defendant providing notice that the Plaintiff would be requesting judgment does not include Defendant's apartment number. Thus, it is unclear whether Defendant has received notice of this Ex Parte Application. The Court also notes that the same concerns and errors noted by the Court when it denied Plaintiff's initial Ex Parte Application are present in Plaintiff's Second Ex Parte Application.

Accordingly, Plaintiff's second Ex Parte Application is DENIED. Due to the age of this case, and Plaintiff's delay in prosecuting this case, the Court DISMISSES this case without prejudice.

Plaintiff to give notice.